

Court No. - 21

Case :- WRIT - C No. - 7403 of 2014

Petitioner :- Sudhir Kumar Mishra

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Omkar Nath Rai

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the parties.

The petitioner claims that he has prayed for shifting the transformer, which has been installed over the land where the petitioner is running a private school.

The petitioner's counsel contends that he has deposited a sum of Rs. 500/- for processing the same by the respondent.

Learned counsel for the respondent no. 3, Electricity Department, submits that the procedure of shifting is governed by Clause 4.45 of the Electricity Supply Code, 2005.

This writ petition is, therefore, disposed of with a direction to the respondent no. 3, Executive Engineer, Electricity Distribution Division, Padrauna, District Kushinagar to examine the claim of the petitioner in accordance with Rules and proceed to pass an appropriate order within a period of two months.

Subject to the aforesaid observation, the writ petition is disposed of.

Order Date :- 6.2.2014

Puspendra